

25STCV19491 25STCV19491

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-27

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Case Number: 25STCV19491 Hearing Date: July 27, 2026 Dept: 529

ISRAEL CERVERA VS FCA US LLC, ET AL.

MOTION

TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE
§871.26 AND REQUEST FOR MONETARY SANCTIONS

Date

of Hearing: July 27, 2026 Trial

Date: None

set

Department: 529 Case

No.: 25STCV19491

Moving

Party: Plaintiff Israel Cervera

Responding

Party: Defendant FCA US LLC

BACKGROUND

On June 30, 2025,

Plaintiff Israel Cervera filed a complaint against Defendants FCA US LLC and
Chrysler Dodge Jeep Ram for various violations of the Song-Beverly Consumer
Warranty Act as well as Negligent Repair and Fraudulent Inducement Concealment.

On November 25, 2025, Plaintiff filed a First Amended Complaint.

[TENTATIVE] RULING

Plaintiff Israel

Cervera's Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure §871.26 and Request for Monetary Sanctions is DENIED.

ANALYSIS

Plaintiff Israel Cervera moves this court for an order compelling Defendant FCA US LLC to comply with Code of Civil Procedure section 871.26 by producing all documents required under subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13) and an imposition of mandatory sanctions against FCA US and its counsel of record in the amount of \$2,500.00.

Effective January 1, 2025, in an action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20 (above), the parties shall: "Within 60 days after the filing of the answer or other responsive pleading, ... without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h) [of Section 871.26]." (CCP § 871.26(b).)¿

Plaintiff brings this motion to compel FCA to provide complete, verified compliance with the mandatory initial disclosure requirements of California Code of Civil Procedure section 871.26(h). Plaintiff makes the motion on the grounds the 60-day deadline for mandatory initial disclosures under section 871.26(b) was December 1, 2025. FCA, however, did not meet that deadline.

In opposition, FCA acknowledges it inadvertently provided the documents late – on June 10, 2026. However, Plaintiff served this motion on June 22, 2026. FCA also argues sanctions should be denied as FCA US did not ignore its obligations; it compiled and produced over 1,000 pages of comprehensive records and FCA US drafted and circulated a narrowly tailored Stipulated Protective Order to protect its proprietary manuals.

As the documents have now been produced, the court denies the motion to compel compliance. The court also denies the request for sanctions as the motion was filed after the documents had been produced; it would appear that plaintiff saw no pressing need to

require compliance.